

APARTMENT LEASE

THIS INDENTURE OF LEASE, is made and entered into this ____ day of _____, 20____, by and between **E Street Holdings, LLC**, an Indiana limited liability company (hereinafter referred to as "Landlord") and _____ and _____, (hereinafter referred to individually as Tenant or collectively as "Tenants").

WITNESSETH THAT:

Landlord does hereby lease and let to the Tenants and the Tenants do hereby take from the Landlord, the real estate commonly known as at 601 E. Washington Street Street, Apartment Number ____ Greencastle, Indiana (hereinafter referred to as the "Premises"), on the following terms and conditions:

1. TERM. This Lease shall commence on the ____ day of _____, 20____, and shall continue for a period of twelve (12) months, terminating on the ____ day of _____, 20____, without demand or notice. Landlord shall provide Tenant with possession on the ____ day of _____, 20____. If Tenant remains in possession of the Premises with the consent of the Landlord after the Lease expiration date stated above, such holdover shall not create an additional term but shall be on an "at will" basis.

2. RENT.

(a) Rent for the term of the Lease shall be _____ Thousand _____ Hundred Dollars (\$_____.00).

(b) Tenants shall pay rent monthly installments as follows: _____ Dollars (\$_____.00). shall be due with the signing of this Lease, and then _____ Dollars shall be paid in monthly installments, the next such payment being due and payable on the first day of _____, 20____, and each succeeding payment being due on the first day of each month thereafter during the term of this Lease.

(c) Tenants shall pay _____ (\$_____) for any partial month prior to commencement of the initial term. If any rental payment is not received within five (5) days, a late fee of One Hundred Dollars (\$100.00) shall be due and payable immediately.

(d) Rent shall be payable to Landlord at PO Box , Greencastle, Indiana, 46135

3. SECURITY DEPOSIT. Tenants shall tender to Landlord along with the signing of this Lease, the sum of _____ and no/100 Dollars (\$_____.00) as a deposit to secure performance of any and all obligations of Tenants during the term of this Lease. Such deposit shall be disbursed according to the pertinent sections of I.C. 32-31-3.

4. USE. Tenants agree to use the Premises only for residential purposes and agree neither to assign this Lease nor to sublet the Premises in whole or in part. No part of the Premises shall be rented to any person or entity by the Tenants without the express written consent of Landlord.

5. UTILITIES AND TAXES. Tenants shall pay for all utilities, including but not limited to, heat, electricity, gas, water, cable, internet and telephone, and shall hold the Landlord harmless from

such charges. Tenants shall use existing wiring, and shall not add additional wiring for any of these utilities.

6. INSURANCE. Tenants further covenant that during the entire term of this Lease that they shall pay for the cost and expense of a fire and casualty insurance policy for their own personal property contained on or within the subject real estate and for liability insurance in the amount of \$_____.

7. REPAIRS AND MAINTENANCE. Landlord agrees to maintain the structure and the working systems of the property during this Lease. Tenants shall, at Tenant's sole cost and expense, maintain the Premises in a safe, clean and sanitary condition at all times. Tenant accepts the Premises "as is", including the condition of the fixtures and appliances. Tenant agrees to maintain the appliances in a good condition and repair the appliances during the lease term, if necessary. At the end of the term, Tenant will leave the Premises clean and in good condition, with the exception of ordinary wear and tear. Tenants shall remove all Tenants' belongings and surrender all keys to Landlord upon the expiration of the Lease. Tenants are liable for damages caused by his or her acts or neglect and any acts and neglect of his or her family, invitees or guests.

8. YARD. Landlord agrees to maintain the exterior of the Premises. Tenants shall not allow trash, debris or inoperable vehicles to remain on the yard so the real estate shall be kept in a clean and neat condition.

9. REDECORATION AND ALTERATIONS. With the exception of small nail holes for hanging pictures, Tenants shall not paint, paper, varnish, , or otherwise decorate the Premises or improvements thereon without first obtaining the written consent of the Landlord.

10. PARTIAL OR TOTAL DESTRUCTION OF PREMISES. In the event the Premises become wholly untenable by reason of fire or other casualty, then this Lease may be terminated by the Tenants or the Landlord and the rent shall abate and be prorated to such date; however, if the premises are rendered only partially unfit and the Tenants continue to use the same as their residence, then this Lease shall continue and rent shall not abate.

11. TENANTS' AGREEMENTS OF OCCUPATION. Tenants agree to obey and comply with all laws, ordinances and regulations of the City of Greencastle, Putnam County and State of Indiana, affecting the use or occupation of the Premises, and to cause no disturbance or nuisance in the neighborhood.

12. BREACH BY TENANTS. In the event that: (a) the rent, or any part thereof, remains unpaid for five (5) days after it becomes due; or (b) any Tenant fails to keep any of the other covenants of this Lease, including the Rules attached hereto which are incorporated in this Lease, it will be lawful for Landlord to re-enter and repossess the Premises by any lawful means, with Tenant waiving any statutory notice to quit, and thereupon this Lease shall terminate and Landlord shall be immediately due any past and future unpaid rent for the unexpired term of the Lease.

If Tenants abandon or vacate the Premises during the term of this Lease, Landlord may elect to re-enter the premises without liability for prosecution or owing damages to Tenant, and Tenants waive any statutory notice to quit, and, at Landlord's option, relet the Premises. If the Landlord elects not to

relet the Premises, Tenant shall be liable for the remainder of the rent due under the Lease until its expiration. If the Landlord relets the Premises but is unable to relet the Premises for as much rent as would have been paid by Tenant during the period between Tenant's abandonment and the end of the term, Tenant shall be liable to Landlord for the difference. Landlord may also dispose of any property left by Tenant after abandonment without liability and apply the proceeds to reduce such difference.

13. DISCLOSURE OF INFORMATION ON LEAD-BASED PAINT AND/OR LEAD-BASED PAINT HAZARDS.

Lead Warning Statement. Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, Landlord must disclose the presence of lead-based paint and/or lead-based paint hazards in the dwelling. Tenants must also receive a federally approved pamphlet on lead poisoning prevention.

Landlord's Disclosure

A. Presence of lead-based paint and/or lead-based pain hazards. (Landlord to initial either paragraph #1 or #2 below):

1. ____ Known lead-based paint and/or lead-based paint hazards are present in the housing (explain)

2. ____ Landlord has no knowledge of lead-based paint and/or lead-based paint hazards in the housing.

B. Records and reports available to the Landlord. (Landlord to initial either paragraph #1 or #2 below):

1. ____ Landlord has/have provided the Tenants with all available records and reports pertaining to lead-based paint and/or lead-based paint hazards in the housing. (List documents)

2. ____ Landlord has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing.'

Tenants' Acknowledgement (initial):

C. ____ Tenants have received copies of any/all information listed above.

D. ____ Tenants have received the pamphlet "Protect Your Family From Lead in Your Home."

14. LITIGATION. In the event of any litigation arising between the parties over the performance of the agreements of this Lease, the prevailing party shall, in addition to any other damages awarded, be entitled to reasonable attorneys' fees for such party's attorney(s).

15. ACCESS BY LANDLORD TO PREMISES. Landlord, Landlord's agents, and Landlord's prospective lessees, purchasers or mortgagees shall be permitted to inspect and examine the Premises at all reasonable times, upon providing at least twenty-four hour prior (24) notice (or Landlord may enter immediately in case of an emergency), and Landlord shall have the right to make any repairs to the Premises which Landlord may deem necessary, but this provision shall not be construed to require Landlord to make repairs except as is otherwise required hereby. For a period commencing two (2) months prior to the expiration of the term of this Lease, Landlord may maintain "For Rent" signs on the front or on any part of the Premises.

16. QUIET ENJOYMENT. If Tenants shall perform all of the covenants and agreements herein provided to be performed on Tenants' part, Tenants shall, at all times during the term, have the peaceable and quiet enjoyment of possession of the Premises without any manner of hindrance from Landlord or any parties lawfully claiming under Landlord.

17. GENERAL AGREEMENT OF PARTIES. This Lease shall extend to and be binding upon the heirs, personal representatives, successors and assigns of the parties. This provision, however, shall not be construed to permit the assignment of this Lease except as may be permitted hereby. When applicable, use of the singular form of any word shall mean or apply to the plural and the neuter form shall mean or apply to the feminine or masculine.

The captions and section numbers appearing in this Lease are inserted only as a matter of convenience and are not intended to define, limit, construe or describe the scope or intent of such provisions. No waiver by Landlord of any default by Tenants shall be effective unless in writing, nor operate as a waiver of any other default or of the same default on a future occasion. Landlord's acceptance of rent shall not be deemed a waiver as to any preceding default. Any notices to be given hereunder shall be deemed sufficiently given when in writing and (a) actually served on the party to be notified; (b) sent via electronic mail if such party's email addresses are set forth below; or (c) placed in an envelope directed to the party to be notified at the following addresses and deposited in the United States mail by certified or registered mail, postage prepaid:

1. If to Landlord at PO BOX , Greencastle, Indiana 46135; or

Email: jonesy150@hotmail.com

2. If to Tenants at the address of the Premises; or

Email:_____

Either party by may change such addresses written advice as to the new address given as above provided. This Lease shall not be recorded.

18. PETS. Tenants may not bring or keep pets in the Premises without the prior written consent of the Landlord.

19. PARTIES BOUND. This Lease shall bind the parties, their personal representatives, heirs and permitted assigns. This Lease shall only be amended or modified by an instrument in writing signed by all parties.

20. SUBORDINATION. This Lease, and the Tenants' leasehold interest, is and shall be subordinate, subject and inferior to any and all liens and encumbrances now and thereafter placed on the Premises by Landlord, any and all extensions of such liens and encumbrances and all advances paid under such liens and encumbrances.

21. RULES. Tenants shall observe and comply with, and will cause its employees, invitees, licensees, agents, contractors, clients, customers, guests and/or anyone claiming under Tenants to observe and comply with, any and all rules and regulations from time to time promulgated by Landlord, in Landlord's sole and absolute discretion (the "Rules"). Tenant hereby acknowledges receipt of the Rules and agrees that noncompliance with the Rules shall be a default under the Lease as set forth in Section.

22. ADDITIONAL PROVISIONS. Notwithstanding any term herein to the contrary, Landlord and Tenant agree to the following additional provisions:

23. JOINT AND SEVERAL OBLIGATIONS. If more than one person executes this Lease as a Tenant, the obligations of all Tenants shall be joint and several with each Tenant assuming full liability for the obligations under this Agreement.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals this ____ day of _____, 20__

LANDLORD:

E Street Holdings, LLC,
an Indiana limited liability company

By:_____

Print Name:_____

Title:_____

TENANTS:

Print Name:

Print Name:

Tenants are advised to seek the advice of their own attorney in connection with the interpretation of their rights and obligations under this lease.

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Smoke Detector Compliance Form

Property Address:

Landlord:

Owner(s) of the Property:

Managing Agent (if applicable):

Tenant(s):

Name Printed:

Signed:

Date:_____

Tenants are required to sign off on working smoke detectors

Indiana Code 32-31-5-7 requires that (a) at the time the landlord delivers a rental unit to a tenant, the landlord shall require the tenant to acknowledge in writing that the rental unit is equipped with a functional smoke detector, and (b) neither the landlord nor the tenant may waive, in a rental agreement or a separate writing, the requirements under IC 22-11-18-3.5.

Indiana Code 22-11-18-3.5 details the installation of smoke detectors according to code.

Indiana Code 32-31-7-5 requires the tenant to ensure that each smoke detector installed in the tenant's rental unit remains functional and is not disabled. If the smoke detector is battery operated, the tenant shall replace batteries in the smoke detector as necessary. If the smoke detector is hard wired into the rental unit's electrical system, and the tenant believes that the smoke detector is not functional, the tenant shall provide notice to the landlord by written notification of the need to replace or repair the smoke detector.

RULES

(Apartment Lease)

Section 1

Obstruction of Sidewalks

If the premises are situated on the ground floor with direct access to the street, then tenant shall, at tenant's expense, keep the sidewalks directly in front of the premises clear of obstructions, and clean and free from ice, snow, and refuse.

Section 2

Projections From Building

No awnings, air-conditioning units, or other fixtures shall be attached to the outside walls or the windowsills of the building, or otherwise affixed so as to project from the building, without the prior written consent of landlord.

Section 3

Signs

No sign or lettering shall be affixed by tenant to any part of the outside of the premises, or any part of the inside of the premises so as to be clearly visible from the outside of the premises, without the prior written consent of landlord. However, tenant shall have the right to place its name on any door leading into the premises; the size, color, and style of the name to be subject to the landlord's approval, which approval shall not be unreasonably withheld.

Section 4

Windows

Windows in the premises shall not be covered or obstructed by tenant. No bottles, parcels, or other articles shall be placed on the windowsills, in the halls, or in any other part of the building other than the Premises. No article shall be thrown out of the doors or windows of the premises.

Section 5

Floor Covering

Tenant shall not lay linoleum or other similar floor covering so that the covering shall come in direct contact with the floor of the premises.

Section 6

Alterations of Building

No painting or wall papering shall be done, or alterations made to any part of the building by putting up or changing any partition, door, or windows, and no nailing, boring, or screwing into the woodwork or plastering shall be done, without the consent of the landlord, except for small nail holes for hanging of pictures.

Section 7

Maintenance of Leased Premise

All glass, locks, and trimmings in or on the doors and windows belonging to the building, shall be kept whole, and whenever any part thereof shall be broken, they shall immediately be replaced or

repaired and put in order under the direction, and to the satisfaction, of the landlord, and shall be kept whole and in good repair, in the same number and kind.

Section 8

Specifications for Window Coverings

If the tenant desires shades inside the windows, other than those provided by the landlord, they must be of such shape, color, material, and make as may be prescribed by the landlord, and must be constructed or attached at tenant's expense.

Section 9

Interference With Occupants of Building

Tenant shall not make, or permit to be made, any unseemly or disturbing noises and shall not interfere with other tenants' use and enjoyment of the entire premises, or the tenants' family, invitees, employees or agents.

Section 10

Locks; Keys

No additional locks or bolts of any kind shall be placed on any of the doors or windows by tenant. Tenant shall, on the termination of tenant's tenancy, deliver to landlord all keys to any space within the building, either furnished to or otherwise procured by tenant, and in the event of the loss of any keys furnished, tenant shall pay to landlord the cost thereof, or the amount stated in the Lease, whichever is less.

Section 11

Non-Observance or Violation of Rules By Other Tenants

Landlord shall not be responsible to tenant for the nonobservance or violation of any of these rules and regulations by any other tenants. These rules shall not be deemed to warrant the fitness or habitability of any premises or the entire premises and shall not impose any obligation upon Landlord to enforce these rules or any part hereof.

Section 12

Guests

The landlord acknowledges the tenant's right to have parties, or a large number of guests, provided that good order prevail, and that boisterous conduct be avoided. Continued violations of this regulation will, at the option of the landlord, void this lease. Any guest of tenant who visits the Premises for a period longer than two (2) weeks must obtain the prior written consent of landlord to allow the guest to remain on the premises longer than two (2) weeks.

Section 13

Yard

No object of any kind shall be left overnight on the outside of the premises, including, without limitation, furniture, grills, tables, toys, pools, or any refuse, and landlord reserves the right to remove any and all such objects, and the failure to remove them promptly does not constitute a waiver by landlord in this regard. Landlord will make reasonable efforts to identify any tenant owning such

object, and, upon failure to identify an owner, Landlord may dispose of any such object without any liability to such owner. Notwithstanding the foregoing, tenant shall be entitled to keep such personal items on tenant's private patio which is located adjacent to tenant's premises.

Section 14

Parking

Landlord may, but is not obligated to provide parking for a reasonable number of automobiles for tenants of the entire premises. Provided, however, Tenant acknowledges that parking spaces are limited and shall observe the right of other tenants to park vehicles on the premises. No non-operational vehicles shall be parked in any parking area owned by the Landlord for longer than seventy-two hours (72). In the event such vehicle is not removed before the expiration of seventy-two hours, Landlord may, in Landlord's sole and absolute discretion, cause such vehicle to be towed or otherwise removed from the premises at the sole cost and expense of the vehicle owner.

Section 15

Animals

Dogs, cats, birds and other pet animals are strictly prohibited in this building, except as approved by landlord, in writing.

Section 16

Litter

Nothing shall be thrown by tenant or tenant's family, invitees, employees or agents out of the windows, doors, stairwells or any part of the premises.

Section 17

Damage To Premises of Tenant or of Other Tenants

All tenants and occupants must observe strict care not to leave their windows open when it rains or snows, and for any default hereof tenant shall compensate Landlord or other tenants for any loss or injury sustained through damage to personal property, paint, plastering, or any other part of the building.

Tenant is responsible for leaving premises and appliances cleaned and in move-in condition, including having carpets cleaned by a cleaner approved by Landlord. Any cleaning, debris removal and maintenance cost incurred by the Landlord after Tenant's move-out will be charged to Lessee as an additional rent payment at \$25.00 per man-hour and deducted from Tenant's security deposit.

Section 18

Fire Hazards; Insurance

No tenant shall do, or permit anything to be done, in the premises, or bring or keep anything therein, that shall in any way increase the rate of fire insurance on the Premises, or bring or keep anything therein that will interfere with the rights of other tenants, or in any way injure or annoy them, or conflict with the laws relating to fires, or with the regulations of the fire department, or with any insurance policy on the building or any part thereof, or conflict with any of the rules and ordinances of the board of health.

To the extent allowed by prevailing law, Tenant hereby releases and indemnifies Landlord against any and all claims for damage to personal property of Tenant in the Premises for any reason whatsoever, unless such damage is caused by the willful neglect or willful act of Landlord.

Section 19

Repairs

Tenants shall make written reports and requests for all non-emergency repairs and irregularities and shall send such report or request to the attention of the landlord at landlord's address. Tenant shall endeavor to notify landlord first via electronic mail if an email address is provided in the lease.

Section 20

Garbage

All garbage must be placed in trash cans at the place designated by landlord. Garbage must be separated to comply with any state or local recycling laws, and landlord will provide notice of specific separation requirements.

Section 21

Janitorial Services

No janitor service is to be provided under this lease.

Section 22

Storage of Personal Property

If tenants store or leave personal property in basement, on a patio, or a common area outside the premises, tenant acknowledges that landlord shall have no liability for the security or safekeeping of any personal property that tenants may store or leave in such areas, that tenants release landlord from any liability thereof, and that tenants hereby acknowledge that any property so stored is stored at their own risk.

Section 23

Criminal Activities and Illegal Substances

Neither tenant, nor visitor or guest in the premises, shall engage in any criminal activity, including illegal narcotic substance criminal activity, on or near Premises, nor shall they engage in any act intended to facilitate such criminal activity, nor engage in the manufacture, sale, use or distribution of illegal narcotic substances at any location, whether on the premises or otherwise, nor engage in acts of violence or threats of violence, including but not limited to, the unlawful discharge of firearms, on or near the premises. VIOLATION OF THE PROVISIONS IN THIS PARAGRAPH SHALL BE A MATERIAL VIOLATION OF THE LEASE AND GOOD CAUSE FOR TERMINATION OF TENANCY. It is understood and agreed that a single violation shall be good cause for termination of the lease. Unless otherwise provided by law, proof of violation shall not require criminal arrest or conviction, but such proof must only be based upon a preponderance of the evidence.

Section 24

Smoke Detectors

Smoke detectors (and carbon monoxide detectors, if provided) are not to be removed or tampered with. Tenant shall be responsible for replacement of missing detectors. Tenant agrees to

periodically test such detectors to assure proper function and to maintain a working battery in all detectors and to report a malfunctioning detector to Landlord. By signing the lease, Tenant acknowledges receipt of all required safety detectors.

No changes in the Lease or these Rules shall be allowed unless agreed upon in writing by Landlord and Tenant(s). In the event the Rules and the body of the Lease conflict, if anywhere, the Rules shall control.

Tenant acknowledges receipt of the Rules and agrees that noncompliance with the Rules shall be a default under the Lease.

E Street Holdings, LLC

Date

Print Name:
(Landlord)

Date

Print Name:
(Tenant)

Date

Print Name:
(Tenant)